

Whangarei District Council Meeting Minutes

Date: Thursday, 22 June, 2023
Time: 9:00 a.m.
Location: Council Chamber
Forum North, Rust Avenue
Whangarei

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes (Teams)
Cr Scott McKenzie
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance Cr Marie Olsen

Scribe C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

Cr Ruka opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

Item 6.2 Northland Emergency Services Trust – Lease Extension

3. Apology / Kore Tae Mai

Cr Marie Olsen

Moved By Cr Gavin Benney

Seconded By Cr Nicholas Connop

That the apology be sustained.

Carried

Cr Reid joined the meeting at 9.02am following the apologies.

4. Public Forum / Huihuinga-a-tangata

There were no speakers at public forum.

5. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held on 25 May 2023

Moved By Cr Carol Peters

Seconded By Cr Paul Yovich

That the minutes of the Whangarei District Council meeting held on Thursday 25 May 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council Meeting held on 6 June 2023

Moved By Cr Carol Peters

Seconded By His Worship the Mayor

That the minutes of the Whangarei District Council meeting held on Tuesday 6 June 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.3 Minutes Whangarei District Council held on 14 June 2023

Moved By Cr Gavin Benney

Seconded By His Worship the Mayor

That the minutes of the Whangarei District Council meeting held on Wednesday 14 June 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

The resolution to exclude the public was taken after Item 5.3.

Item 6.1 was taken after the public excluded section of the meeting.

6. Decision Reports / Whakatau Ripoata

6.1 2023 LGNZ Remits

1. Allocation of risk and liability in the building sector

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the Council **support** the remit that LGNZ:

- Engage directly with the Ministry for Building and Construction to advocate for a change to the current joint and several liability frameworks, including examination of the MBIE policy position statement Risk, Liability and Insurance in the Building Sector.
- Make the case for the alternatives and changes to joint and several liability through updating policy advice and engaging with industry groups.

Carried

2. Rates Rebate

Moved By Cr Carol Peters

Seconded By Cr Gavin Benney

That the Council **support** the remit that LGNZ advocate to Central Government to:

- Raise the income threshold for rates rebate eligibility to enable more low- and fixed-income property owners access to the rebate
- Adjust the rebate amount in line with inflation and the cost of living
- Investigate options to make rates rebates more accessible for residents by implementing an income data sharing process similar to that of Horowhenua District Council and Levin MSD office. This will enable Councils to obtain benefit income on behalf of the ratepayer and make it easier to apply for the rates rebate
- Investigate options for data sharing between Councils, Internal Affairs and Ministry of Social Development to proactively identify households that qualify for a rates rebate rather than waiting for people to apply.

Carried

3. Roading/ Transport Maintenance Funding

Moved By Cr Simon Reid

Seconded By Cr Phil Halse

That the Council **support** the remit that LGNZ:

- Publicly lobby all political parties to increase Crown funding for state highway and local road maintenance budgets.

- Consider and pursue other avenues including the Office of the Auditor General to seek resolution of the issues facing the country in relation to the systemic rundown of our national roading infrastructure.

Carried

4. **Local Election Accessibility**

Moved By Cr Nicholas Connop

Seconded By Cr Scott McKenzie

That Council **support** the remit that LGNZ ensure Local Government Elections are fully accessible by advocating to Central Government to make local government candidates eligible for Election Access Fund.

Carried

5. **Ability for Co-chairs at formal meetings**

Moved By Cr Deb Harding

Seconded By Cr Ken Couper

That Council **support** the remit that LGNZ:

- explores and promotes options that enable councils to make greater use of co-chair arrangements for standing committees, joint committees and sub committees.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney			X
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Carol Peters	X		
Cr Simon Reid		X	

Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	7	5	1
			Carried (7 to 5)

6. **Parking infringement penalties**

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That Council **support** the remit that LGNZ advocates to central government to enable council to determine penalties for parking infringements.

Carried

7. **Rural and regional public transport**

Moved By Cr Scott McKenzie

Seconded By Cr Phoenix Ruka

That Council **support** the remit that LGNZ:

- Acknowledges the Government stated support for a major uplift in all urban bus networks nationwide under New Zealand's first emission reduction plan.
- Calls on the Government and opposition parties to increase investment in public transport for rural and regional communities to support access to essential services and amenities, vibrant rural communities and just transition to a low emission transport system.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		

Cr Scott McKenzie	X	
Cr Carol Peters	X	
Cr Simon Reid		X
Cr Phoenix Ruka	X	
Cr Paul Yovich	X	
Results	11	2

Carried (11 to 2)

8. **Establishing resolution service**

Moved By Cr Nicholas Connop

Seconded By Cr Jayne Golightly

That Council **support** the remit that LGNZ:

- Investigates the creation of an LGNZ independent, national process to handle complaints or concerns, ensuring fairness, protection, and accountability in local government.
- Works with the Local Government Commission to implement findings from its September 2021 Report – Local Government Code of Conduct.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		

Cr Paul Yovich X

Results 7 6

Carried (7 to 6)

9. **Earthquake prone buildings**

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That Council **support** the remit that LGNZ investigate and report to members on ways to help council s and communities that are struggling with the time frames in the Earthquake Prone Building (EPB) sections of the Building Act and council policies pertaining to Priority Thoroughfares.

Carried

10. **KiwiSaver contributions for elected members**

Moved By Cr Carol Peters

Seconded By Cr Jayne Golightly

That Council **support** the remit that LGNZ ask the Government to amend the law to enable council to make contributions to an elected members KiwiSaver scheme.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		

Cr Paul Yovich X

Results 7 6

Carried (7 to 6)

11. **Audit NZ Fees**

Moved By Cr Paul Yovich

Seconded By Cr Carol Peters

That Council **support** the remit that LGNZ calls on central government to take action to reduce council audit fees by:

- Revisiting the scope and requirements of reporting and auditing on councils.
- Conducting a review on the practice of audit in councils and work on best practice guidance to streamline this process.

This review should examine whether the reporting and audit requirements of council are consistent with the level of reporting and audit that is required of other public entities.

Carried

6.2 **Northland Emergency Services Trust – Lease Extension**

Moved By Cr Nicholas Connop

Seconded By Cr Simon Reid

That the Council:

1. Approve a one year extension of the Northland Emergency Services Trust lease at Kensington, with two further one year rights of renewal (three years in total).
2. Delegate staff to undertake negotiations with NEST to complete all terms and conditions of the lease extension (through a Deed of Variation of Lease).
3. Notes that staff will work with NEST to establish operational mechanisms for ongoing communication with the Kensington community.
4. Authorise the Chief Executive to finalise and execute the Deed of Variation of Lease.
5. Approve NEST's request to establish a new portacom building within the lease area as the landowner, noting a Resource Consent may be required.

Carried

Declaration of Interest:

Cr Halse declared an interest as Chair of the Airport Noise Management Committee. Cr Halse withdrew from the table taking no part in discussions or voting on Item 6.2.

Acknowledgment of the last meeting in Chambers Forum North

The Mayor, Deputy Mayor and Chief Executive in acknowledging the last Council meeting to be held in the Council Chambers, Forum North, reflected on the progress of the council and the district over the years, paid tribute to the contributions of previous council's and spoke of how they look forward to working in the new Civic Centre.

The public excluded section of the meeting was taken after Item 5.3.

7. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 25 May 2023	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Northport Commissioner Appointments		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To protect the privacy of natural person	Section 7(2)(a)

Carried

8. Closure of Meeting / Te katinga o te Hui

Cr Ruka closed the meeting with a karakia/prayer at 10.39am.

Confirmed this 3rd day of August 2023

His Worship the Mayor Vince Cocurullo (Chairperson)